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**UNITED STATES DISTRICT COURT
 DISTRICT OF NEVADA**

MARK JOSEPH NEJMEH
 Plaintiff,
 v.
 THERIVA BIOLOGICS, INC.,
 Defendant.

Case No. 3:26-cv-00705-ART-CSD

**DEFENDANT THERIVA BIOLOGICS, INC.’S
 OPPOSITION TO EMERGENCY MOTION
 FOR TEMPORARY RESTRAINING ORDER
 AND/OR PRELIMINARY INJUNCTION**

Defendant Theriva Biologics, Inc. (“Theriva” or the “Company”), by and through its attorneys of record, responds to the Emergency Motion for Temporary Restraining Order, Preliminary Injunction, Expedited Discovery, and Order Shortening Time (ECF No. 2) (the “Emergency Motion”) filed by Plaintiff Mark Joseph Nejme (“Plaintiff”), pursuant to the Court’s September 23, 2026 Minute Order (ECF No. 8). This Opposition is supported by the following memorandum of points and authorities, the Declaration of Steven Shallcross (“Shallcross Decl.”), and Exhibits 1-19 thereto (“Ex” or “Exs.”), all of the pleadings and papers on file in this action, and any oral argument the Court may permit.

I. INTRODUCTION

Plaintiff's motion for injunctive relief is a farce. Plaintiff, a retail investor, has been sending improper demands to Theriva, a biotechnology company working to develop new treatments for cancer, for months. When those demands were rejected (as Plaintiff owns well below the Nevada threshold for document demand rights), Plaintiff seized on a scrivener's error in the explanation for the voting process in the latest proxy statement as justification to ask this Court for extraordinary injunctive relief to block exercise of warrants following the August 3, 2026 shareholder vote approving issuance of the underlying shares ("New Warrant Shares"). As a threshold matter, Plaintiff cannot show irreparable harm. The only injury he identifies is possible future dilution if the New Warrants are exercised and an alleged impairment of his voting rights. But even assuming economic dilution of a stockholder's interest alone can support a claim under Section 14(a) of the Securities Exchange Act of 1934 (and the Ninth Circuit has held that economic loss does not necessarily accompany dilution), such harm is a quantifiable economic injury, not the kind of harm that money damages cannot remedy. As for dilution of voting rights, Plaintiff holds approximately 0.2% of outstanding shares and so any claimed future dilution would be a fraction of a fraction of a percent, and courts have refused to find irreparable harm with such a minimal dilution. *Barber v. Arkin*, 2008 WL 4737882, at *2 (D. Ariz. Oct. 29, 2008) (holding no irreparable harm where there was a "one-tenth of one percent reduction in voting power.").

Plaintiff likewise cannot show that he is likely to succeed on the merits. Plaintiff's claim under Section 14(a) rests on a scrivener's error in the June 29, 2026 Proxy Statement (the "June Proxy Statement") concerning whether Proposal 5, which sought stockholder approval of the issuance of shares upon exercise of the New Warrants ("Warrant Exercise Approval"), was "routine" or "non-routine," and accordingly, whether brokers could vote uninstructed shares on a proposal. Under either reading of the June Proxy Statement, a stockholder who wished to vote against the proposal had every reason to instruct their broker how to vote, and nothing in the June Proxy Statement told anyone they could not; indeed, stockholders were encouraged to vote their shares in order to ensure their voting preference was counted in the vote. Moreover, the stray references to Proposal 5 as "routine" (or as allowing brokers to vote uninstructed shares) followed four prior

proxies seeking Warrant Exercise Approval, each of which told Theriva stockholders that the exact same proposal was non-routine and told them to provide voting instructions to their brokers. Shallcross Decl. ¶¶ 8, 13; Ex. 2 at 5; Ex. 5 at 3; Ex. 6 at 3; Ex. 7 at 3. Given the total mix of information available to the shareholders, there is no plausible claim that the scrivener's error was material. Plaintiff also fails to plead economic loss, which every private Section 14(a) plaintiff must plead as part of loss causation. His only claimed injuries are speculative future dilution and a supposed impairment of his voting rights, but neither constitutes economic loss because "economic loss does not necessarily accompany dilution." *N.Y.C. Emps.' Ret. Sys. v. Jobs*, 593 F.3d 1018, 1023 (9th Cir. 2010). Without economic loss, there is nothing the June Proxy Statement could have caused, and no remedy, "equitable or otherwise," is available. *Jobs*, 593 F.3d at 1024.

II. BACKGROUND

A. Theriva Develops Cancer Therapies and Depends on Investor Capital to Fund Them.

Theriva is a clinical-stage biotechnology company developing therapies designed to treat cancer and related diseases in areas of high unmet need. Shallcross Decl. ¶ 4. Its lead drug candidate has shown promising results in clinical trials, and regulators in the United States and Europe have recognized it with special designations for patients with pancreatic cancer and a rare childhood eye cancer. *Id.* Like many companies developing cancer treatments, Theriva has no product revenue yet and pays for years of costly clinical trials by raising money from investors. *Id.* ¶ 5. The pressure to fundraise has weighed on Theriva's share price, which fell from \$0.43 in June 2025 to \$0.22 as of September 28, 2026, and makes every source of stockholder-approved capital, including the New Warrants, important to the Company's ability to continue its work. *Id.*

B. The Inducement Agreement and the Requirement of Warrant Exercise Approval.

On October 16, 2025, Theriva entered into a warrant inducement agreement (the "Inducement Agreement") with certain holders of existing Company warrants (the "Existing Warrants"). *Id.* ¶ 6; Ex. 1. The holders exercised 8,092,280 Existing Warrants for cash at a reduced price of \$0.54 per share and, as consideration, received New Warrants to purchase up to 16,184,560 shares of common

1 stock. *Id.* Under Section 713(a) of the NYSE American Company Guide and the terms of the
 2 Inducement Agreement, the New Warrants could not be exercised until Theriva obtained stockholder
 3 approval. Shallcross Decl. ¶ 7. The Inducement Agreement obligated Theriva to seek that approval
 4 at a meeting within sixty days of closing and, failing approval, to call a meeting every sixty days
 5 thereafter. Shallcross Decl. ¶ 7; Ex. 1 at 2.

6 **C. Theriva Attempts to Hold Special Meetings to Obtain Warrant Exercise**
 7 **Approval.**

8 On November 10, 2025, Theriva filed its proxy statement for a special meeting to be held on
 9 December 15, 2025 (the “December Proxy Statement”) to vote on Warrant Exercise Approval.
 10 Shallcross Decl. ¶ 8; Ex. 2. The Company’s bylaws require representation of one-third of the voting
 11 power for a quorum, and the scheduled December 15, 2025 meeting fell short of that threshold by
 12 millions of shares. Shallcross Decl. ¶ 9-10; Ex. 3 at Exhibit 3.1 § 1.05; Ex. 4. During the scheduled
 13 December 15 meeting, Theriva representatives discussed the possibility of setting the date for the
 14 meeting to December 22, 2025, but that date never went forward. Shallcross Decl. ¶ 12. Rather, the
 15 next meeting was separately noticed for February 11, 2026. *Id.* ¶ 13; Ex. 5 at 1. Thereafter, Theriva
 16 issued proxy statements for special meetings scheduled for February 11, 2026, April 9, 2026, and
 17 June 5, 2026, respectively. *Id.* ¶ 13; Exs. 5-7. None of the four special meetings could be convened
 18 because at each one, the shares present or represented by proxy fell short of the one-third quorum
 19 required by Theriva’s bylaws by millions of shares: about 6.8 million on December 15, 2025; 3.7
 20 million on February 11, 2026; 11.2 million on April 9, 2026; and 10.9 million on June 5, 2026.
 21 Shallcross Decl. ¶¶ 10, 14-15; Exs. 4, 8-14.

22 The proxy statements for each of the four proposed special meetings stated that the proposal
 23 seeking Warrant Exercise Approval was expected to be treated as “non-routine,” that brokers
 24 therefore lacked discretionary authority to vote uninstructed shares on it, and that, because there were
 25 no routine matters to be voted upon, no broker non-votes were expected. Ex. 2 at 5; Ex. 5 at 3; Ex. 6
 26 at 3; Ex. 7 at 3. Each proxy also stated that “it is important that you provide voting instructions to
 27 your broker, bank, or other nominee.” *Id.*

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D. The June 29, 2026 Proxy Statement.

Theriva fixed June 23, 2026 as the record date for its 2026 annual meeting, at which 45,892,668 shares were outstanding. Shallcross Decl. ¶¶ 16-17; Ex. 15 at 1. The June 29, 2026 Proxy Statement contained six proposals, and “Proposal 5” concerned Warrant Exercise Approval (*i.e.*, the issuance of up to 16,184,560 shares of common stock upon the exercise of New Warrants). Ex. 15 at 1.

The June Proxy Statement made references to the status and treatment of the votes for Proposal 5 in four distinct passages. First, a section titled, “What is the voting requirement to approve each of the proposals?” contained a table with information about each proposal. *Id.* at 4. A column titled “Impact of Broker Non-Votes” correctly noted “No Effect” for Proposal 5, along with Proposals 1 and 3 (the other non-routine proposals):

What is the voting requirement to approve each of the proposals?

Proposal	Vote Required	Voting Options	Impact of “Abstain” Vote	Impact of Broker Non-Votes
Proposal 1: Election of Directors	Plurality – the four (4) director nominees who receive the most “FOR” votes will be elected to serve on the Board	“FOR” “WITHHELD”	No effect	No effect
Proposal 2: Auditor Ratification Proposal	The affirmative vote of the holders of a majority of the shares present in person or by proxy and entitled to vote on this proposal is required.	“FOR” “AGAINST” “ABSTAIN”	Counts as a vote “AGAINST” this proposal.	Not applicable. No broker non-votes are expected for this proposal.
Proposal 3: 2020 Plan Increase Proposal	The affirmative vote of holders of a majority of the shares present in person or by proxy and entitled to vote on this proposal is required.	“FOR” “AGAINST” “ABSTAIN”	Counts as a vote “AGAINST” this proposal.	No effect
Proposal 4: Authorized Common Stock Increase Proposal	The affirmative vote of the holders of a majority of the shares of Common Stock present in person or by proxy and entitled to vote on this proposal is required at the Annual Meeting and entitled to vote is required	“FOR” “AGAINST” “ABSTAIN”	Counts as a vote “AGAINST” this proposal.	Not applicable- There are not expected to be any
Proposal 5: Warrant Exercise Proposal	The affirmative vote of the holders of a majority of the shares of Common Stock present in person or by proxy and entitled to vote on this proposal is required	“FOR” “AGAINST” “ABSTAIN”	Counts as a vote “AGAINST” this proposal.	No Effect
Proposal 6: Adjournment Proposal	The affirmative vote of the holders of a majority of the shares present in person or by proxy and entitled to vote on this proposal is required.	“FOR” “AGAINST” “ABSTAIN”	Counts as a vote “AGAINST” this proposal.	Not applicable- There are not expected to be any

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Id. Second, another relevant reference is contained in a description of Proposal 5 itself. *Id.* at 39-41. The subsection titled “Required Vote” correctly noted that “[a]bstentions will have the same effects as votes AGAINST this proposal. Broker non-votes will have no effect on this proposal.” *Id.* at 41. This treatment is consistent with the description of the other non-routine proposals that generated broker non-votes. This language also contrasts with the Required Vote section for a routine proposal, which states that “[b]roker non-votes are not expected for this proposal.” *Id.* at 38 (Proposal 4).

Plaintiff identifies a scrivener's error in two places in the June Proxy Statement that are inconsistent with the voting explanations detailed above. In a section titled "What is the difference between holding shares as a stockholder of record and as a beneficial owner?", a numbering error inadvertently included Proposal 5 as routine, and excluded it from the list of non-routine proposals:

If you hold your shares through a broker and you do not give instructions to the record holder on how to vote, the record holder will be entitled to vote your shares in its discretion on certain matters considered routine, such as Proposals 2, 4, 5 and 7. Proposals 1, 3 and 6 are not considered to be routine matters. If you hold your shares in street name and you do not instruct your broker how to vote for any of Proposals 1, 3 and 6, no votes will be cast on your behalf for such non-routine matters for which you have not provided voting instructions. These 'broker non-votes' will be treated as shares that are present and entitled to vote for purposes of determining the presence of a quorum, but not as shares entitled to vote on these non-routine proposals.

Id. at 3. The second instance of the scrivener's error appears in a section titled "What are broker non-votes? *Id.* at 5. It correctly lists Proposal 5 among the non-routine matters and correctly omits Proposal 5 from the list of routine matters. *Id.* Only the last sentence repeats the stray "5":

Proposals 1, 3 and 5 are all considered 'non-routine' matters. As a result, brokers, banks or nominees that do not receive instructions with respect to any of these proposals from their customers will not be entitled to vote on any of these proposals for which instructions were not received.

Proposals 2, 4 and 6 are considered a 'routine' matter. As a result, brokers that do not receive instructions with respect to Proposals 2, 4, 5 and 6 from their customers will be entitled to vote on such proposals in their discretion.

Id. Theriva provided a telephone number that stockholders and brokers could call with questions about voting. *Id.* at 4; Shallcross Decl. ¶ 18. Theriva is not aware of any inquiry from any stockholder or broker, including Plaintiff, concerning the routine or non-routine treatment of Proposal 5 before the August 3, 2026 annual meeting. Shallcross Decl. ¶ 18.

E. August 3, 2026 Annual Meeting and Approval of Proposal 5.

On August 3, 2026, stockholders approved Proposal 5, with 3,665,312 votes for, 2,267,592 against, 123,397 abstentions, and 10,823,826 broker non-votes. Decl. ¶ 17; Exs. 16-17. Consistent with the treatment of non-routine proposals, the broker non-votes were not counted as votes entitled to vote on Proposal 5. *Id.* With abstentions counted as votes against, the proposal carried by 637,161

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1 votes above the required majority. *Id.* The New Warrants became exercisable as of the date of the
 2 vote.

3 **F. Plaintiff's Demands to Theriva and This Lawsuit.**

4 On May 22, 2026, Plaintiff sent Theriva a demand under NRS 78.257 for minutes, raw proxy
 5 tabulations, and logs of his telephone calls with Theriva counsel's relating to the December 15, 2025
 6 special meeting. Shallcross Decl. ¶ 22; Ex. 18. He warned that if Theriva did not comply within five
 7 business days, he would ask a court to "halt the upcoming June meeting." *Id.* Theriva rejected the
 8 demand on May 28, 2026, notifying Plaintiff that he lacked standing because he did not own the 15%
 9 of outstanding shares that NRS 78.257(1) requires; that his demand lacked the affidavit required by
 10 NRS 78.257(2); and that Theriva, as a current SEC reporting company, is exempt under NRS
 11 78.257(7). Shallcross Decl. ¶ 23; Ex. 19. Theriva also explained that no minutes existed because the
 12 meeting never convened for lack of quorum. *Id.* In June 2026, stockholder Paul Bernhardt—who
 13 submitted an affidavit in connection with Plaintiff's Motion—sent substantially similar demands,
 14 and Theriva rejected them on the same grounds on June 10 and June 24, 2026. Shallcross Decl. ¶ 24.

15 Plaintiff filed this action and the Emergency Motion on September 16, 2026. ECF Nos. 1-2.
 16 On September 23, 2026, the Court ordered Plaintiff to serve the Emergency Motion by September
 17 25, 2026 and set Theriva's response for September 29, 2026. ECF No. 8. On September 25, the Court
 18 required Plaintiff to file the eleven missing pages of the Complaint by September 29, the date this
 19 Opposition is due. ECF No. 9.

20 **III. ARGUMENT**

21 **A. Legal Standard.**

22 "Injunctive relief, whether temporary or permanent, is an 'extraordinary remedy, never
 23 awarded as of right.'" *Graham v. Nevada*, 2025 WL 458028, at *2 (D. Nev. Feb. 11, 2025) (quoting
 24 *Winter v. Nat. Res. Def. Council, Inc.*, 555 U.S. 7, 24 (2008)). TROs and preliminary injunctions are
 25 "meant to 'preserve the status quo' and 'prevent irreparable loss of rights prior to judgment,'" *Paradise Harbor Place Tr. v. Bank of Am., N.A.*, 2022 WL 617443, at *1 (D. Nev. Mar. 2, 2022),
 26 and "may only be awarded upon a clear showing that the plaintiff is entitled to such relief," *Winter*,
 27 555 U.S. at 22. The movant must establish that: (1) he is likely to succeed on the merits; (2) he is
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likely to suffer irreparable harm absent relief; (3) the balance of equities tips in his favor; and (4) an injunction is in the public interest. *Id.* at 20. Plaintiff bears the burden on each factor. *DISH Network Corp. v. FCC*, 653 F.3d 771, 776-77 (9th Cir. 2011); see also *Mazurek v. Armstrong*, 520 U.S. 968, 972 (1997).

Plaintiff must also show that he is “under threat of suffering ‘injury in fact’ that is concrete and particularized; the threat must be actual and imminent, not conjectural or hypothetical.” *Ctr. for Food Safety v. Vilsack*, 636 F.3d 1166, 1171 (9th Cir. 2011). And “when the movant fails to establish the existence of an emergency, a motion for temporary restraining order should be denied.” *Wells Fargo Advisors, LLC v. Kolhoss*, 2013 WL 486977, at *3 (D. Nev. Feb. 6, 2013).

B. No Emergency Exists to Justify a TRO.

A TRO “should be restricted to serving [its] underlying purpose of preserving the status quo and preventing irreparable harm just so long as is necessary to hold a hearing, and no longer.” *Hidalgo v. Nat’l Default Servicing Corp.*, 2013 WL 663123, at *2 (D. Nev. Feb. 21, 2013) (citing *Granny Goose Foods, Inc. v. Bhd. of Teamsters*, 415 U.S. 423, 439 (1974)). Plaintiff contends that the holders of the New Warrants could exercise these warrants at any moment, issuing up to 16,184,560 new shares and diluting existing stockholders. Emergency Motion ¶ 20; Complaint ¶ 93. But Theriva’s sworn declaration confirms that no holder of a New Warrant has delivered a notice of exercise and no New Warrant Share has issued. *Shallcross Decl.* ¶ 19. The stock traded at \$0.22 as of close of market on September 28, 2026, well below the New Warrants’ \$0.54 exercise price. *Decl.* ¶ 20. To exercise the New Warrants, a holder would pay Theriva \$0.54 in cash for each share, when the same share can be bought on the open market today for less. *Ex. 1* at 3. As such, there is no economic reason for any holder to exercise the New Warrants now, and nothing suggests any holder of the New Warrants will do so. With no exercise pending and no economic reason to expect one, there is no status quo for a TRO to preserve and no imminent irreparable harm for it to prevent. Moreover, Theriva intends to call a re-vote on the Warrant Exercise Approval in the coming weeks, mooting all claims relating to the New Warrants.

In an attempt to manufacture an emergency, Plaintiff alludes to a potential merger transaction that he speculates that “could further change the capitalization and place rights in additional third

parties.” Complaint ¶ 94. There is no evidence that a merger is on the imminent horizon, and Plaintiff’s speculation that one theoretically could occur is not sufficient to establish imminent harm. But even if a merger were imminent, it would not trigger an exercise of the New Warrants. Under the New Warrants’ terms, exercise occurs only when a holder chooses to deliver a written “Notice of Exercise” and pay the exercise price. Ex. 1, Exhibit 10.1 at 1. No provision of the New Warrants makes exercise automatic on a merger or any other corporate event. *See* Ex. 1.

C. Plaintiff Cannot Show a Likelihood of Success on the Merits.

On the merits, Plaintiff’s Section 14(a) claim fails for lack of materiality and lack of loss causation, and the Nevada corporate-law claim cannot support the relief requested.

1. The Section 14(a) Claim Fails for Lack of Materiality.

A proxy statement omission or misstatement is actionable under Section 14(a) and Rule 14a-9 only if it is material—that is, if “there is a substantial likelihood that a reasonable shareholder would consider it important in deciding how to vote.” *TSC Indus., Inc. v. Northway, Inc.*, 426 U.S. 438, 449 (1976). Plaintiff cannot make that showing as to the June Proxy Statement.

First, the inconsistency in how the voting explanation for Proposal 5 was described could not have deterred or in any way prevented any stockholder who wished to vote against the proposal from doing so. The routine/non-routine distinction governs only what happens when a stockholder who holds shares through a broker (a “beneficial owner”) gives no instruction to their broker; it never limits a beneficial owner’s right to instruct their broker how to vote. Every beneficial owner had the ability to submit voting instructions to their broker regardless of the routine/non-routine classification. A beneficial owner who read Proposal 5 as non-routine understood they had to instruct his broker for his shares to count. A beneficial owner who read Proposal 5 as routine understood that their broker could vote their shares without instruction; as such, a beneficial owner opposed to Proposal 5 had every reason to instruct their broker to vote against the proposal, because nothing in the June Proxy Statement suggested an uninstructed broker would vote against a proposal the Board unanimously recommended. Under either reading, a stockholder who wished to vote against Proposal 5 had the same options: submit instructions to their broker. Indeed, the June Proxy Statement tells stockholders states that “YOU ARE URGED TO CAST YOUR VOTE AS INDICATED IN THE

PROXY MATERIALS”, with the Board recommending a vote “FOR” every one of the six proposals—regardless of classification. Ex. 15 at 45; see also *id.* at 41 (“THE BOARD UNANIMOUSLY RECOMMENDS THAT YOU VOTE ‘FOR’ THE WARRANT EXERCISE PROPOSAL.”) A stockholder indifferent enough to leave the decision to his broker, by definition, was not one for whom the classification was “important in deciding how to vote.” TSC, 426 U.S. at 449.

Second, the inconsistency was immaterial in light of the total mix of information. “[A] statement is misleading if it would give a reasonable investor the impression of a state of affairs that differs in a material way from the one that actually exists.” *In re Cutera Sec. Litig.*, 610 F.3d 1103, 1109 (9th Cir. 2010). Where the relevant information “was already part of the total mix of information available to investors, defendants’ statements [are] not misleading.” *Tadros v. Celladon Corp.*, 738 F. App’x 448, 449 (9th Cir. 2018). Here, the June Proxy Statement was Theriva’s fifth solicitation on the same warrant proposal, and each prior proxy told stockholders that the proposal was not expected to be routine and that they should provide voting instructions to their brokers. Although the explanation of the voting process in the June Proxy Statement contained a scrivener’s error in two passages, the voting table in the June Proxy Statement correctly states that broker non-votes have “No Effect” on Proposal 5 (Ex. 15 at 4), and the Required Vote section says the same thing (*id.* at 41). The June Proxy Statement also provided a phone number for voting questions. *Id.* at 4. No stockholder or broker—including Plaintiff who voted against Proposal 5—raised an inquiry about the passage before the meeting. *Shallcross Decl.* ¶ 18; *Complaint* ¶ 104.

Third, the scrivener’s error in the explanation of the voting process did not concern the merits of the warrant proposal. That is, Plaintiff does not contend that the substantive description of Proposal 5 in the June Proxy Statement was false or misleading. Plaintiff does not contend that the June Proxy Statement misdescribed the terms of the New Warrants, the dilution they would cause, or the consideration Theriva received. The June Proxy Statement described Proposal 5 at length and disclosed that Warrant Exercise Approval would result in the issuance of up to 16,184,560 additional shares and that existing stockholders’ interests would be “correspondingly reduced.” Ex. 15 at 40. That Plaintiff cannot point to mischaracterization or omission concerning the substance of Proposal

5 makes clear that the errors were minor and would not have affected how shareholders chose to vote on that proposal.

Fourth, there was no functional effect on the calculation of the vote for Proposal 5. The vote was tabulated exactly as it would have been had the passage been error-free. Broker non-votes were not counted as entitled to vote on Proposal 5, consistent with non-routine treatment. Shallcross Decl. ¶ 17; Exs. 16-17.

Accordingly, Plaintiff cannot plausibly allege that the challenged language significantly altered the total mix of information available to stockholders or affected the outcome of the vote.

2. The Section 14(a) Claim Fails for Lack of Loss Causation.

Plaintiff also fails to plead loss causation, which applies to Section 14(a) claims “regardless of the relief sought.” Hubner v. Mayer, 2015 WL 12513581, at *5 (C.D. Cal. June 8, 2015). A private plaintiff therefore must allege facts that connect “the proxy misstatements with an actual economic harm.” Jobs, 593 F.3d at 1023 (9th Cir. 2010) (holding that allegations of dilution of shareholders’ interests did not adequately plead economic loss in a Section 14(a) claim). Plaintiff alleges only that he “faces imminent dilution” and an impairment of his informed voting rights (Complaint ¶ 106) but “economic loss does not necessarily accompany dilution, so such conclusory assertions of loss are insufficient.” Jobs, 593 F.3d at 1023-24; see also LifeVoxel Va. SPV, LLC v. LifeVoxel.AI, Inc., 2024 WL 2032929, at *12 (S.D. Cal. May 7, 2024). Plaintiff’s dilution also has not happened, since no New Warrant has been exercised and no New Warrant Share has issued. Shallcross Decl. ¶ 19. Plaintiff also cannot avoid the requirement of an economic harm by seeking only equitable relief: without an adequate allegation of economic loss, “no remedy, equitable or otherwise, is available.” Jobs, 593 F.3d at 1023-24. Because Plaintiff has alleged no economic loss, there is no loss the proxy statement could have caused.

3. Plaintiff’s Section 14(a) Claim Relating to the December 15, 2025 Telephone Call Fails on the Merits

Separately, Plaintiff argues that a December 15, 2025 call from Theriva’s counsel following the scheduled December 15 special meeting that did not reach quorum somehow violated Section 14(a). Theriva’s counsel’s discussion with him concerning the next special meeting date was not a

“proxy” or “authorization” with any legal effect; Plaintiff identifies no false or misleading statement in this supposed “proxy”; and a single call to one stockholder nearly eight months before a separately noticed and separately solicited vote cannot serve as an “essential link” in any corporate action under Section 14(a). 17 C.F.R. § 240.14a-9(a); Rabbani v. Enzo Biochem, Inc., 682 F. Supp. 2d 400, 411-12 (S.D.N.Y. 2010) (denying preliminary injunction under Section 14(a) where plaintiff offered no evidence that officer’s conversations with stockholders implicated a request to vote a particular way or were otherwise “reasonably calculated to influence their votes”).

4. The Nevada Corporate-Law Claim Cannot Support Relief Against the August Vote.

Plaintiff’s second cause of action seeks declarations under Nevada’s stockholder-meeting statutes (NRS 78.310, 78.320) and Theriva’s bylaws concerning the December 15, 2025 special meeting that did not reach quorum. Complaint ¶¶ 109-115. Specifically, he asks the Court to decide what quorum standard applied, whether the meeting was validly adjourned to December 22, and whether a telephone call from Theriva’s counsel after the December 15 session was improper. Complaint ¶ 111. Plaintiff’s theory, at bottom, is that Theriva was obliged to treat the December session—which was never convened due to failure to reach quorum—as a final defeat of the warrant proposal. These meetings are irrelevant to the validity of the August 3, 2026 vote. The Inducement Agreement required Theriva to call a meeting every sixty days until approval was obtained. Shallcross Decl. ¶ 7; Ex. 1 at 2. Indeed, Plaintiff concedes that “later meetings could be independently called under the inducement agreement and Nevada law” and that “[c]ancellation of 22 December does not automatically extinguish all authority to call another meeting.” Complaint ¶ 114. The August 3, 2026 annual meeting was separately noticed, had a new record date, and was solicited through a new proxy. Every later special meeting likewise fell short by millions of shares until the annual meeting. Shallcross Decl. ¶ 14. Similarly, Plaintiff fails to explain how any aspect of his conversation with Theriva’s counsel following the December 15, 2025 attempt to convene a

special meeting was improper. Count Two provides no basis to enjoin the exercise of the New Warrants.¹

D. Plaintiff Cannot Demonstrate Irreparable Harm.

Plaintiff fails to demonstrate “immediate threatened injury.” *Caribbean Marine Servs. Co. v. Baldrige*, 844 F.2d 668, 674 (9th Cir. 1988). Irreparable injury must be “likely (not merely possible).” *Am. Trucking Ass’ns v. City of Los Angeles*, 559 F.3d 1046, 1052 (9th Cir. 2009). “[C]onclusory or speculative allegations are not enough.” *Titaness Light Shop, LLC v. Sunlight Supply, Inc.*, 585 F. App’x 390, 391 (9th Cir. 2014). Failure to show irreparable harm is fatal, and an independent basis to deny Plaintiff’s Emergency Motion. See *Amylin Pharms., Inc. v. Eli Lilly & Co.*, 456 F. App’x 676, 679 (9th Cir. 2011).

1. Plaintiff’s Claimed Harm Is Speculative.

Plaintiff’s speculation that harm may occur is insufficient to establish irreparable harm. ECF No. 2 at 6-7. As shown above, no exercise has occurred or is economically rational, and any potential merger would not trigger any exercise. See *supra* Part III.B. Plaintiff’s harm depends on an event he cannot show will happen at all.

2. Dilution of Plaintiff’s 0.2% Stake in Theriva Is Not Irreparable Harm.

Plaintiff claims two injuries: dilution of his shares and impairment of his “informed voting rights.” Complaint ¶ 106. Neither is irreparable.

First, any economic harm from dilution can be compensated as damages even if Plaintiff were to win on the merits, and “[i]t is well established” that “monetary injury is not normally considered irreparable.” *L.A. Mem’l Coliseum Comm’n v. Nat’l Football League*, 634 F.2d 1197, 1202 (9th Cir. 1980); *see also Masters v. Avanir Pharms., Inc.*, 996 F. Supp. 2d 872, 886 (C.D. Cal. 2014) (“To the extent that Plaintiff claims irreparable harm due to dilution of his shares . . . such dilution is quantifiable and thus remediable by money damages.”); *Calamore v. Juniper Networks Inc.*, 2007

¹ Nor does the 34%-versus-one-third quorum discrepancy matter. On December 15, 33,739,643 shares were outstanding and 4,414,253 shares were represented. One-third was 11,246,548 shares, a shortfall of 6,832,295; the December proxy’s 34% standard was 11,471,479 shares, a shortfall of 7,057,226. See Shallcross Decl. ¶¶ 10-11; Ex. 4. The gap therefore made no difference.

WL 1100313, at *2 (N.D. Cal. Apr. 12, 2007) (denying TRO, noting that “any dilution of Plaintiff’s shares caused by further issuance of stock would be remediable by money damages”); *In re Molycorp, Inc.*, 2016 WL 4473332, at *3 (D. Del. Aug. 23, 2016) (alleged “severe dilution” of stock compensable by money damages and did not constitute irreparable harm). Any dilution of the voting power of Plaintiff’s stake cannot constitute irreparable harm, as Plaintiff owns only 90,191 of 45,892,668 of Theriva’s outstanding shares—approximately 0.2%. ECF No. 4-3 at 183. Even if every warrant were exercised, his stake would fall by a fraction of a fraction of a percent. That supposed harm does not suffice to warrant injunctive relief. *See Barber v. Arkin*, 2008 WL 4737882, at *2 (D. Ariz. Oct. 29, 2008) (“The Court cannot conclude that a one-tenth of one percent reduction in voting power constitutes irreparable harm.”).

Second, Plaintiff’s voting rights have not been impaired. He received the June Proxy Statement, he voted against Proposal 5 (Complaint ¶ 104), and his vote was counted. He has not been deprived of anything that a TRO could restore.

E. The Balance of Equities and Public Interest Weigh Against Relief.

Plaintiff’s Emergency Motion does not establish any equitable basis or reason in the public interest why an injunction should be issued here. The law is clear that “[a]n injunction may not issue unless the balance of hardships tips in favor of the moving party.” *JL Beverage Co., LLC v. Beam, Inc.*, 899 F. Supp. 2d 991, 1011 (D. Nev. 2012). Where “the impact of an injunction reaches beyond the parties, carrying with it a potential for public consequences, the public interest will be relevant.” *Stormans, Inc. v. Selecky*, 586 F.3d 1109, 1139 (9th Cir. 2009)).

The balance of hardships cannot tip in Plaintiff’s favor because he has placed nothing on his side of the scale. As shown above, no exercise of the New Warrants has occurred, none is foreseeable in light of the economic irrationality of their exercise, and his only claimed injury, dilution of a 0.2% stake, is speculative and compensable by damages if Plaintiff were to be successful in his claims. By contrast, even though there is no economic rationality to the exercise of the New Warrants at this time, a restraining order foreclosing that ability would unnecessarily restrain contract rights held by holders of the New Warrants who are not before the Court and whom Plaintiff has not joined and would place a public federal restraint on a stockholder-approved instrument while the Company

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1 evaluates its financing and strategic alternatives. Emergency relief that burdens absent parties and
 2 imposes these costs, to prevent an invented harm no one expects to occur, serves no equitable
 3 purpose. *See First 100, LLC v. Omni Fin., LLC*, 2016 WL 3511252, at *3 (D. Nev. June 27, 2016);
 4 *Terrier, LLC v. HCA Franchise Corp.*, 2022 WL 4280251, at *9 (D. Nev. Sept. 15, 2022). Freezing
 5 a stockholder-approved financing on a single stockholder’s speculation would unnecessarily
 6 undermine the certainty on which public-company capital markets depend.

7 Even if the Emergency Motion did not fail on its face (and it does), the Court should not enter
 8 emergency relief on the present record. As filed, the Complaint omits its first fifty-eight paragraphs—
 9 eleven pages worth of allegations in a twenty-four page pleading. *See* Complaint. On September 25,
 10 2026, the Court ordered Plaintiff to file the missing pages by September 29, 2026, the same day this
 11 opposition is due. ECF No. 9. As of this filing, Plaintiff has not done so. His Emergency Motion cites
 12 allegations that are not in the filed complaint: it relies on “Compl. paragraphs 21 through 40” for its
 13 December 2025 quorum theory and on “paragraphs 1, 27, 72 through 76, and 87” for its account of
 14 the warrants. Emergency Motion ¶¶ 5, 8. Given these missing allegations around the time this
 15 Opposition is due, Theriva respectfully submits that the appropriate course is to deny the TRO and
 16 allow any request for a preliminary injunction to proceed on a complete complaint, on a regular
 17 briefing schedule, after a full hearing.

18 **F. Any Bond Should Be Substantial.**

19 If the Court were to determine that, even on this speculative record, a restraining order is
 20 necessary, the Court should require a substantial bond from Plaintiff to proceed. Under FRCP 65(c),
 21 “[t]he court may issue a preliminary injunction or a temporary restraining order *only if* the movant
 22 gives security in an amount that the court considers proper to pay the costs and damages sustained
 23 by any party found to have been wrongfully enjoined or restrained.” Fed. R. Civ. P. 65(c) (emphasis
 24 added). The bond’s purpose “is to safeguard Defendants from costs and damages incurred as a result
 25 of a temporary restraining order improvidently issued.” *Platinum Realty & Holdings, LLC v. Lee*,
 26 2014 WL 176788, at *4 (D. Nev. Jan. 13, 2014). Plaintiff’s proposed \$100 bond bears no relationship
 27 to the potential harm of freezing the New Warrants, which cover up to 16,184,560 shares. ECF No.
 28 2 at 7. Should the Court grant any relief, Theriva requests a substantial bond, and that any order make

1 clear that it does not restrain any strategic transaction or other corporate action beyond the exercise
2 of the New Warrants and issuance of New Warrant Shares.

3 **G. Plaintiff's Requests for Document Preservation and Expedited Discovery Should**
4 **Be Denied.**

5 Plaintiff seeks a wide range of discovery, see ECF No. 2, Proposed Order ¶ 5, but only the
6 current status of the New Warrants is relevant to the requested restraint. Those facts are already set
7 out in Theriva's declaration. Shallcross Decl. ¶¶ 19-20. To the extent Plaintiff seeks information
8 about the attempts to hold special meetings prior to the August 3, 2026 annual meeting, the
9 Broadridge reports attached to the Declaration establish the represented-share counts for every
10 meeting. Exs. 4, 8-10, 16. The selection of the Spain meeting location is irrelevant because Plaintiff
11 does not allege that it made the June Proxy Statement misleading or kept him from voting. Similarly,
12 records of the post-meeting call nearly eight months before a separately noticed and separately
13 solicited vote cannot bear on whether the June Proxy Statement was materially misleading. Whether
14 a merger agreement has been executed is irrelevant to the exercise of the New Warrants or any
15 pleaded claims, and communications with Yahoo Finance, market-data vendors, and "paid
16 promoters" concern public commentary about the May 2025 offering, which Plaintiff pleads only "as
17 context and as a basis for focused discovery" rather than as the basis for any claim. Complaint ¶ 78.

18 Accordingly, expedited discovery is unwarranted.

19 **H. Theriva Intends to Hold a Shareholder Vote on Warrant Exercise Approval.**

20 Theriva does not concede that the June Proxy Statement was materially misleading or a
21 violation of Section 14(a). Even so, in the coming weeks it intends to call a new stockholder meeting
22 to vote again on Warrant Exercise Approval. Shallcross Decl. ¶ 21. Plaintiff's Section 14(a) claim
23 targets the June Proxy Statement's broker-vote explanation (Complaint ¶¶ 80-108; once stockholders
24 vote again on a new solicitation, Plaintiff will be given exactly the "corrective solicitation and revote"
25 he seeks. *Id.* at 24, ¶ H. The outcome of the new vote controls, and the August 3, 2026 vote will be
26 rendered irrelevant. And because no New Warrant has been exercised and no share has issued, there
27 are no damages and nothing to rescind (*id.* ¶ I; Shallcross Decl. ¶ 19). As such, the revote moots
28 Plaintiff's Emergency Motion.

1 While it is difficult to comprehend the full scope of Plaintiff's claims given that nearly half
 2 of the complaint has yet to be filed, the allegations relating to the scheduled December 15, 2025
 3 meeting are entirely irrelevant to his Section 14(a) claim and rest on a fundamental misunderstanding
 4 of the law, as described above.

5 **IV. CONCLUSION**

6 For the foregoing reasons, Theriva respectfully requests that Plaintiff's Emergency Motion
 7 for Temporary Restraining Order, Preliminary Injunction, Expedited Discovery, and Order
 8 Shortening Time be denied.

9 **DATED:** September 29, 2026.

10 **MCDONALD CARANO LLP**

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